



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00131 Park Estates, 4th Filing Zone Change
Date: May 10, 2021

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/10/2021
- Public Services Committee 5/18/2021
- Second reading 5/24/2021
- Public Services Committee 6/8/2021
- Third and final reading 6/14/2021

Related Items:

- Park Estates, 4th Filing Annexation (UDC-21-00129)

Planning Commission Recommendation:

The Planning Commission heard this item at their May 3, 2021 meeting and **unanimously** recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY AR AGRICULTURAL RESIDENTIAL TO MR MEDIUM-DENSITY RESIDENTIAL FOR LAND LOCATED SOUTHWEST OF THE INTERSECTION OF BRAEHILL ROAD, PARKHILL ROAD, AND PANORAMA DRIVE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on May 3, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Tract 1, Park Estates, 4th Filing is hereby changed to MR Medium-density Residential.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

MAY 3, 2021

STAFF REPORT

FILE: UDC-21-00131: Park Estates 4th Filing Zone Change

REQUEST: A request to rezone approximately 1.1 acres of land from County AR Agricultural Residential to MR Medium-density Residential in concert with an annexation

LOCATION: Southwest of the intersection of Parkhill, Braehill, and Panorama

APPLICANT: TL Provision, LLC

AGENT: AVI, PC

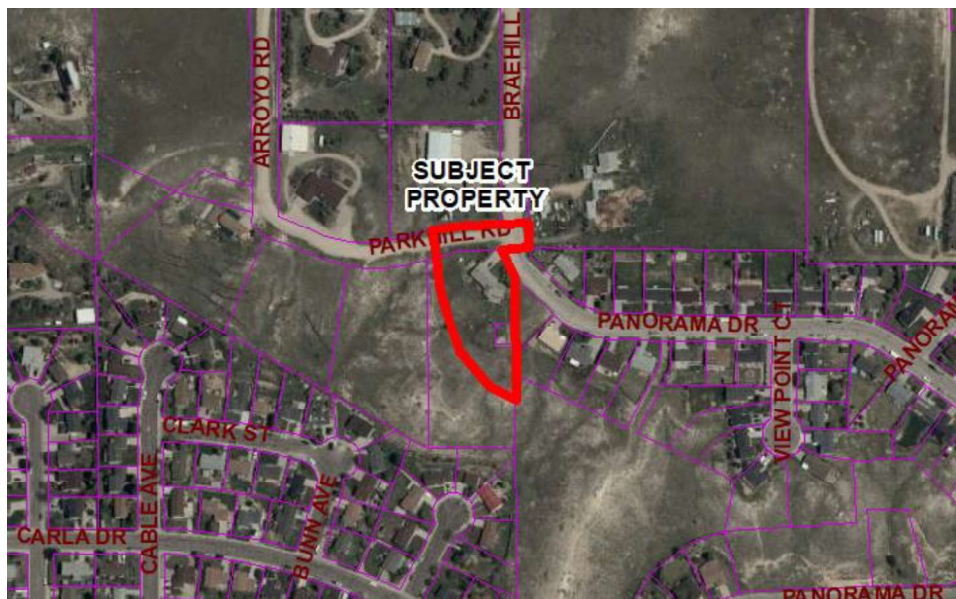
OWNER: Darold Stephen Melchior, Et Ux

ZONING: County AR Agricultural Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To give land a City zone in concert with annexation

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Tract 1, Park Estates, 4th Filing, Laramie County, Wyoming from County AR Agricultural Residential to MR Medium-density Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County AR Agricultural Residential to MR Medium-density Residential for 1.1 acres of land in concert with an annexation. The land is anticipated to be developed as a single-unit residential use, with associated open areas. The land is currently occupied by one single-family home.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County AR	Low-density Single-family Residential
North	Urban Residential	County AR	Low-density Single-family Residential
South	Urban Residential	County AR, MR	Single-family Residential
East	Urban Residential	MR	Single-family Residential
West	Urban Residential	County AR	Undeveloped

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary and existing infrastructure exists in the neighborhood to the southeast. Development will require infrastructure extensions and improvements.

The Future Land Use Designation for this property is Urban Residential. The optimal zoning for the proposed future land use designation is any of the residential zones, including the MR zone.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

The existing zoning to the south, north, and west is AR and outside of City limits. The property to the east is zoned MR Medium-density Residential within City limits. The future land uses anticipated by the Comprehensive Plan and other official plans for this area anticipate higher-intensity, urban-style residential uses, and the MR zone is both compatible with existing zoning in the area and with the future land use designation.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The current County AR zone allows limited development options and is intended for low-intensity rural uses. Generally, parcels in this zone district are not expected to connect to urban services. The proposed MR zone allows a variety of more urban development options. Also, as the property is being annexed into the City, a City zone is required.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The standards of Article 4 apply to MR zoning; however, due to the limited scope of this zone change area, the existing development patterns, and the topographic constraints, there is limited opportunities to apply the standards of Article 4 to the development of this site. Required open space and infrastructure improvements would be required with subsequent development actions.

The proposed zone change for the subject property **complies** with review criterion 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The MR zone is intended to develop with a variety of urban-style residential uses. The MR zone is applicable to areas designated Urban Residential by the Future Land Use Map, and is intended to be within ½ mile of commercial centers. This property is anticipated to develop with urban-style uses in the future, and is within ½ mile of the commercial center located along Dell Range near College.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The applicant is seeking the proposed zone change in concert with an annexation. The proposed MR zone is the zoning of the surrounding properties within City limits. A specific development pattern is proposed with this application, but should that application not be executed, the MR zoning provides a variety of development options compatible with the surrounding neighborhoods.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is in an area covered by the following plans:

- PlanCheyenne

The application conforms to PlanCheyenne per the discussion with Review Criterion 1.

STAFF REVIEW:

Through the review process, no issues were identified by staff, and no comments regarding the proposed zone change were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The zoning map amendment application is proposed in concert with an annexation, and the MR zone is the City zone contiguous to the subject property. The proposed MR zone is also consistent with the future development patterns associated with the future land use designation. Staff recommends approval of the zoning map amendment as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

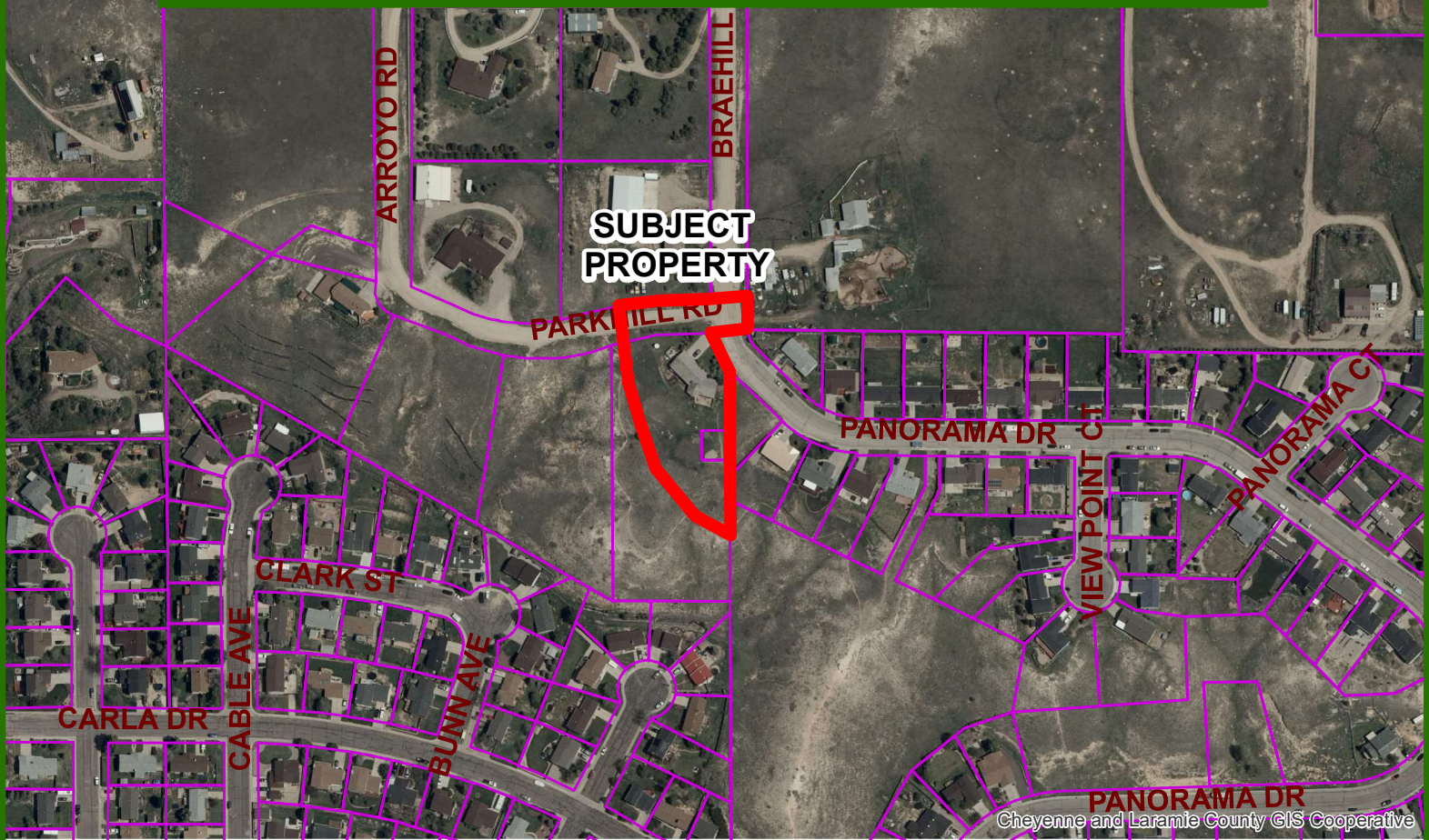
STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County AR to MR.

ATTACHMENTS:

1. Aerial, Future Land Use Plan, and Current Zoning Map
2. Master Application
3. Applicant Provided Zone Change Map

5318 Braehill (Parkhill Estates, 4th Filing) Zone Change

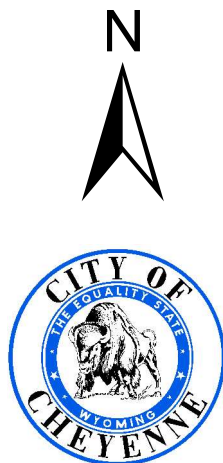
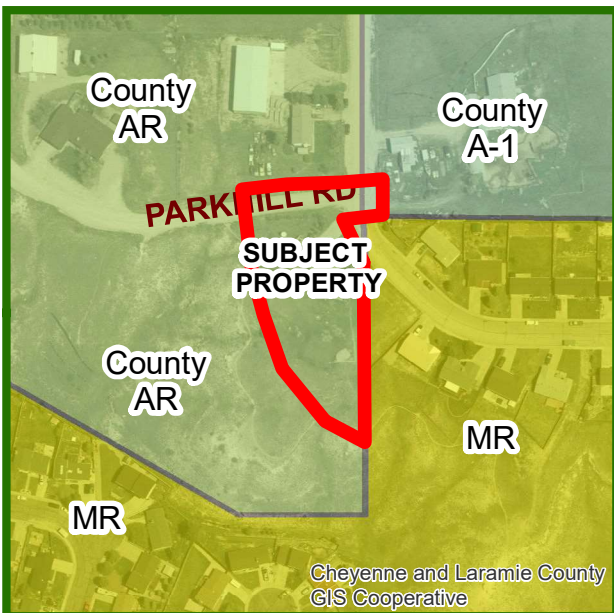


Application Number
Annexation
UDC-21-00131

Agent: AVI, PC
Owners: TL Provision LLC
Darold Stephen Melchior

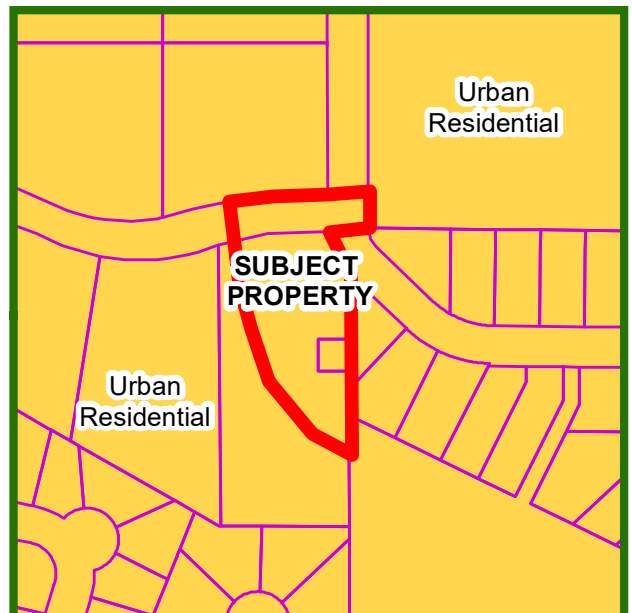
0 310 620
Feet
Scale applies to above map only

Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Zoning Map Amendment Application

Submission date: **31 March 2021, 6:07PM**

Receipt number: **13**

Related form version: **9**

General Information

Applicant Name: **TL Provision LLC**

Applicant Address: **5318 braehill rd**

Applicant City: **cheyenne**

Applicant State: **wyoming**

Applicant Zip Code: **82001**

Applicant Phone: **3076372323**

Applicant Email: **steve@melchlaw.com**

Representative Name: **AVI PC**

Representative Address: **1103 old town lane**

Representative City: **cheyenne**

Representative State: **wyoming**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **avi@avipc.com**

Owner Name: **TL Provision LLC**

Owner Address: **5318 braehill rd**

Owner City:	cheyenne
Owner State:	wyoming
Owner Zip Code:	82001
Owner Phone:	3076372323
Owner Email:	steve@melchlaw.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	LOA signed 3-23-21.pdf
Project Location (Street Address or General Location):	5318 braehill rd
Assessor's Parcel ID number(s)	
Total Project Area	1.11 acre
Existing Zoning	AR - Agricultural Residential
Requested Zoning	MR - Medium-density Residential

Application-Specific Questions

Written Statement	A zone change is being proposed for Tract 1 of Park Estates, 4th Filing to allow the current zoning of County AR to be changed to City MR for the development of residential twin home lots.
Zoning Map	zone change.pdf
Notification Letter	4425 notification letter.pdf
Supporting Documents / Information	zone change.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

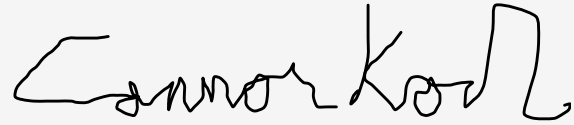
Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Connor Koch

A handwritten signature in black ink that reads "Connor Koch". The signature is written in a cursive style with a large, stylized 'C' at the beginning and a long, sweeping tail at the end.

[Link to signature](#)

Please enter an email address for an email receipt.

ckoch@avipc.com

